

SENATE BILL 2109

By White

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to educator licensure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 5, Part 1, is amended by
adding the following as a new section:

49-5-117. Waiver of educator licensure requirement for certain individuals.

(a) Notwithstanding another law to the contrary, the state board of education
may waive the requirement that an educator possess a license issued by the department
of education in order to teach in the public schools of this state for an individual who
does not hold a bachelor's degree from an accredited four-year institution, if:

(1) The applicant has a minimum of five (5) consecutive years of full-time
teaching experience at a church-related school or private school, as those terms
are defined in § 49-6-3001, that is approved to operate in this state pursuant to
rules promulgated by the state board;

(2) The applicant provides to the state board:

(A) Written verification from the chief administrator of the church-
related school or private school at which the applicant obtained the
teaching experience described in subdivision (a)(1) attesting to the
applicant's satisfactory performance and effectiveness in the classroom;

(B) Documentation evidencing the applicant's performance of
instructional duties substantially similar to those required of licensed
educators teaching in the public schools of this state; and

(C) Evidence of the applicant's completion of professional development training during the period for which the applicant obtained the five (5) years of teaching experience described in subdivision (a)(1); and

(3) The applicant agrees to release their investigative records to the employing LEA or public charter school and to supply a fingerprint sample and submit to a criminal history records check to be conducted by the Tennessee bureau of investigation and the federal bureau of investigation in same manner required of persons who apply for or hold a position as a teacher or any other position requiring proximity to school children pursuant to § 49-5-413.

(b) An educator licensure waiver granted pursuant to this section:

(1) Allows the individual to be employed by an LEA or public charter school as a teacher for a period not to exceed three (3) years, unless the waiver is renewed by the state board;

(2) Does not grant the individual a practitioner teacher license; and

(3) Requires the employing LEA or public charter school to provide annual performance evaluations for the individual pursuant to § 49-1-302(d).

(c) The state board shall establish the:

(1) Review process for applications submitted pursuant to this section;

(2) Criteria for evaluating the instructional effectiveness and professional competency of individuals who apply for or receive an educator licensure waiver;

(3) Requirements for enrollment in an educator preparation program for an individual who receives an educator licensure waiver pursuant to this section, if the board deems the completion of such a program appropriate; and

(4) Conditions under which an educator licensure waiver may be renewed, revoked, or converted into a practitioner license.

(d) This section does not prohibit an applicant from pursuing any other educator licensure pathway established or authorized by the state board.

SECTION 2. Tennessee Code Annotated, Section 49-5-101, is amended by deleting subsection (a) and substituting instead the following:

(a) A person must not be employed as principal, teacher, or supervisor of any public elementary or high school by any local school district, or receive any pay for such services out of the public school funds of the local school district until the person presents to the director of schools a valid educator license or other credential as prescribed in this chapter, unless the person is granted a waiver pursuant to § 49-5-117. It is unlawful for any board of education to issue any warrant or check to such persons for services performed as principal, teacher, or supervisor until the person has presented for record an educator license or other credential valid for the term of employment, unless the person is granted a waiver pursuant to § 49-5-117.

SECTION 3. Tennessee Code Annotated, Section 49-5-403, is amended by deleting subsection (a) and substituting instead the following:

(a) A person must not be employed to teach in any public elementary or high school or receive pay for teaching out of the public funds of any school system until the person has received an educator license or other credential, as prescribed in this chapter, from the commissioner or state board of education, unless the person is granted a waiver pursuant to § 49-5-117.

SECTION 4. Tennessee Code Annotated, Section 49-6-201(b)(4), is amended by adding "unless the teacher is granted a waiver pursuant to § 49-5-117" after "state board of education".

SECTION 5. Tennessee Code Annotated, Section 49-6-404, is amended by adding ", unless the teacher is granted a waiver pursuant to § 49-5-117" after "teach those subjects".

SECTION 6. The state board of education is authorized to promulgate rules to effectuate this act in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 7. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.